

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                    |                           |                                                        |                                    |                                 |
|---------------------------------------------------|--------------------------------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Lee S. Allistair Pearson         | Team:<br>Team # 2                                                  | CCRB Case #:<br>200411373 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                    |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 11/15/2004 10:30 PM   | Location of Incident:<br>Flatlands Ave between 102nd /103rd Street | 18 Mo. SOL<br>5/15/2006   | Precinct:<br>69                                        |                                    |                                 |
| Date/Time CV Reported<br>Tue, 11/16/2004 12:54 PM | CV Reported At:<br>CCRB                                            | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 11/16/2004 12:54 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Patrick Smith | 29672  | 931998 | 069 PCT |
| 2. POM Ron Mentore   | 30811  | 933020 | 069 PCT |

| Officer(s)            | Allegation                                                                                         | Investigator Recommendation |
|-----------------------|----------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Patrick Smith | Abuse: Police Officer Patrick Smith stopped the car in which § 87(2)(b) was an occupant.           | A . Unsubstantiated         |
| B . POM Ron Mentore   | Abuse: Police Officer Ron Mentore stopped the car in which § 87(2)(b) was an occupant.             | B . Unsubstantiated         |
| C . POM Patrick Smith | Abuse: Police Officer Patrick Smith searched the car in which § 87(2)(b) was an occupant.          | C . Unsubstantiated         |
| D . POM Patrick Smith | Abuse: Police Officer Patrick Smith refused to provide his name and/or shield number to § 87(2)(b) | D . Unsubstantiated         |
| E . POM Ron Mentore   | Abuse: Police Officer Ron Mentore refused to provide his name and/or shield number to § 87(2)(b)   | E . Unsubstantiated         |

### Synopsis

On November 16, 2004, § 87(2)(b) filed a complaint via telephone with the CCRB. He stated that on November 15, 2004, he was pulled over by two uniformed officers, PO Patrick Smith and PO Ron Mentore (Allegations A and B). § 87(2)(b) was pulled over in front of a post office on Flatlands Avenue between East 102<sup>nd</sup> and 103<sup>rd</sup> Streets, in Brooklyn. § 87(2)(b) was told that he had been stopped for having gone through a steady red light. PO Mentore told § 87(2)(b) to exit his vehicle and stand near the rear of the car, and § 87(2)(b) complied. § 87(2)(b) stated that, while he was standing at the back of his vehicle, PO Smith searched his car (Allegation C). During the search, PO Smith recovered a kitchen knife from the front driver's side door of § 87(2)(b) car. § 87(2)(b) alleged that he asked POs Smith and Mentore to provide their shield numbers but the officers refused to do so (Allegations D and E). § 87(2)(b) was arrested and taken to the 69<sup>th</sup> Precinct. § 87(2)(b) was ultimately released from the precinct and issued two summonses § 87(2)(b) ). § 87(2)(g) it is therefore recommended that Allegations A, B, C, D and E be closed as **Unsubstantiated**.

### Summary of Complaint

On November 26, 2004, § 87(2)(b) was interviewed at the CCRB. He alleged that at approximately 10:30 PM on November 15, 2004, he was driving his car west on Flatlands Avenue. § 87(2)(b) was coming from a music studio in Queens and he was driving alone in his white Mercedes E320, which has Florida license plates and four 20 percent tinted windows. § 87(2)(b) stated that he was going 10 miles per hour and denied that he drove through any stop signs without coming to a complete stop. He did recall legally passing a stop sign and a traffic light on Glenwood Road and 103<sup>rd</sup> Street and Flatlands Avenue and 103<sup>rd</sup> Street respectively. When he reached Flatlands Avenue between 102<sup>nd</sup> and 103<sup>rd</sup> Streets, § 87(2)(b) was stopped by a marked NYPD patrol car. § 87(2)(b) pulled over in front of a post office, which was closed at the time, and two officers exited the patrol car. § 87(2)(b) described the first officer as a white male with no facial hair or glasses, who was approximately 31 years old and approximately 5'8" tall. § 87(2)(b) identified this officer by name as "PO [Patrick] Smith." He obtained this name from the summonses PO Smith eventually issued to him. § 87(2)(b) described the second officer as a Black male with a medium build and no facial hair or glasses, who was approximately 34 years old and approximately 6'0" tall. He stated that this officer was named PO [Ron] Mentore. § 87(2)(b) obtained this name by observing PO Mentore's shield and nameplate.

PO Smith walked over to the front driver's side window of § 87(2)(b) vehicle and asked § 87(2)(b) to produce his license and registration; § 87(2)(b) complied. PO Mentore went to the passenger side of § 87(2)(b) vehicle. § 87(2)(b) stated that while he was giving PO Smith his license and registration, PO Mentore "was knocking on the car body," behind the rear door on the passenger side. § 87(2)(b) asked PO Mentore why he was knocking on his car. PO Mentore told § 87(2)(b) that he would tell him why he was doing so later. PO Mentore then asked § 87(2)(b) to exit his vehicle. § 87(2)(b) asked PO Mentore why he wanted him to do so. PO Mentore again said that he would tell § 87(2)(b) later. § 87(2)(b) exited his car with his key still in the ignition, and the car running. § 87(2)(b) was then told to stand at the rear of his car, which he did. At this point, PO Smith began searching § 87(2)(b) vehicle.

§ 87(2)(b) stated that PO Smith entered his vehicle and searched "the whole area in the front." He stated that the center console and the glove compartment were searched. The officers neither asked § 87(2)(b) for permission to conduct the search nor did they tell § 87(2)(b) what they were looking for. § 87(2)(b) stated that he was able to observe the search of his vehicle by looking into its interior through the back window. While § 87(2)(b) car was being searched, he stated to the officers, "I need information from both of you guys before we leave here." § 87(2)(b) also stated that, on two different occasions (once while PO Smith was searching § 87(2)(b) vehicle, and once when § 87(2)(b) was handcuffed), he asked the officers to produce their shield numbers. § 87(2)(b) stated that PO Mentore "kind of brushed it off in a way," but did not state how. § 87(2)(b) maintained that he knew that PO Smith had heard his request because PO Smith made eye contact with him and shrugged his shoulders. § 87(2)(b)

§ 87(2)(b) stated that when he asked the officers to produce their shield numbers, “they told me they’ll give it to me later and I never got it.” After approximately five minutes of waiting while his vehicle was being searched, § 87(2)(b) stated to one of the officers, “I don’t want to see anything missing out of my car”. PO Mentore then asked § 87(2)(b) if he thought that PO Smith was a rookie. § 87(2)(b) stated, “they were both more aggravated because I said I didn’t want to see anything missing out of the car.” § 87(2)(b) stated that he was arrested after making this remark. PO Mentore handcuffed § 87(2)(b) while he stood at the rear of his car and placed him in the back of the patrol car.

Once § 87(2)(b) was handcuffed, PO Smith proceeded to the driver side of § 87(2)(b) vehicle and removed a knife that was underneath papers in the drivers door pocket. § 87(2)(b) stated that he knew that PO Smith had seen the knife previously, because when PO Smith retrieved the knife, he went straight to it as if he had seen it before. § 87(2)(b) stated that the knife was a non-serrated kitchen knife of about six inches in length (the knife was not in packaging). § 87(2)(b) stated that he was transporting the knife to his parents’ house from a family event that had taken place at his aunt’s house on a previous date. § 87(2)(b) stated that the knife had been in his car for about a week.

§ 87(2)(b) stated that two additional uniformed white male officers responded to the scene in a marked patrol car. § 87(2)(b) did not see or hear either PO Smith or PO Mentore call for backup). When these two additional officers arrived, PO Smith spoke with them although § 87(2)(b) could not hear the details of this conversation. § 87(2)(b) stated that he saw one of these officers get into his car and drive it to the 69<sup>th</sup> Precinct, where he was taken. § 87(2)(b) stated that he was at the precinct for an hour and that his arrest was not processed. Instead, he was let “out the backdoor” with two summonses (§ 87(2)(b) ) which were written by PO Smith. § 87(2)(b) also stated that his car was searched an additional time while he was at the stationhouse. He realized this when he noticed that a keyboard carrying case, which was in a case in the backseat of his vehicle, was open and the keyboard was upside down. § 87(2)(b) also stated that his spare tire, which was in his trunk, was lifted up and papers were strewn under it. § 87(2)(g)

§ 87(2)(b) returned to the stationhouse the next morning, and attempted to gain information regarding his arrest. A female officer told § 87(2)(b) that there was no record of his arrest.

### **Results of Investigation**

#### *PO Ron Mentore*

On March 7, 2005, PO Ron Mentore was interviewed at the CCRB. He stated that on November 15, 2004, he was working a 1500 by 2335 tour, on patrol in sector D. He was working with PO Patrick Smith. Both officers were in uniform and were operating patrol car number 2738. PO Mentore read and explained his memo book entries regarding the incident as follows:

- 2210 Observed a white Mercedes Benz roll through a stop sign at East 103<sup>rd</sup> Street and Glenwood Road
- 2212 Car stop at East 102 and Flat – observed above motor vehicle go through a steady red at East 103 and Flat Ave
- 2218 One male under for § 87(2)(b)
- 2219 Transported one male perp to 69 Precinct; 2330: male checked for warrants and released with two summonses.

PO Mentore stated that he and PO Smith observed § 87(2)(b) disobey a stop sign at East 103<sup>rd</sup> Street and Flatlands Avenue, in Brooklyn, and that approximately two minutes later, he and PO Smith observed § 87(2)(b) disobey a steady red light at East 102<sup>nd</sup> Street and Flatlands Avenue. PO Mentore stated that he and PO Smith were behind § 87(2)(b) vehicle when they observed him commit the two traffic violations. § 87(2)(b) was stopped on Flatlands Avenue between East 102<sup>nd</sup> and East 103<sup>rd</sup> Streets.

PO Mentore stated that PO Smith observed a knife protruding from a pocket in the front driver side door of § 87(2)(b) vehicle. PO Mentore stated that he was on the passenger side of the vehicle at the time, and PO Smith was on the driver side of the vehicle and, as a result, he is not sure at what time PO

Smith was able to observe said knife. PO Smith told § 87(2)(b) to exit his car and informed PO Mentore that there was a knife in the vehicle. PO Mentore stated that, up until this point, he was not aware that there was a knife in the car. § 87(2)(b) was then arrested and the knife was retrieved. PO Mentore stated that the knife was “some sort of a kitchen knife,” and that it was over four inches in length. PO Mentore stated that “no full search [of the vehicle] was done” at the incident location, that is, the officers did not enter the vehicle and search its lungeable areas for weapons and/or contraband. PO Mentore stated that § 87(2)(b) was arrested for having been in possession of the knife. PO Mentore did not recall § 87(2)(b) asking him or PO Smith to produce a name or shield number.

PO Mentore stated that he made a call via police radio for backup, and an officer (PO Mentore did not recall who) from another unit drove § 87(2)(b) car to the 69<sup>th</sup> Precinct Stationhouse. § 87(2)(b) was also taken to the 69<sup>th</sup> Precinct Stationhouse, where he was charged with being in possession of a knife in excess of four inches. PO Mentore stated that, based on entries made in his memo book, § 87(2)(b) was held at the stationhouse “between ten to fifteen minutes at best.” PO Mentore stated that § 87(2)(b) received one summons for having been in possession of the knife and one for disobeying either a stop sign or a stoplight (PO Mentore did not recall which). PO Mentore stated that § 87(2)(b) vehicle was searched at the stationhouse, and nothing further was recovered. PO Mentore stated that it was a “search incident to lawful arrest.”

#### *PO Patrick Smith*

On March 31, 2005, Police Officer Patrick Smith was interviewed as a subject officer at the CCRB. He stated that on November 15, 2004, he worked 1600 x 2400 tour as “regular patrol,” with PO Ron Mentore. PO’s Smith and Mentore were both in uniform and were assigned a marked NYPD patrol car (PO Smith did not recall patrol car number). PO Smith stated that he made entries regarding the incident in his memo book. He also stated that he did not have his memo book with him at the time of the interview.

PO Smith stated that he and PO Mentore pulled § 87(2)(b) over on Flatlands Avenue between East 102<sup>nd</sup> and 103<sup>rd</sup> Streets, in Brooklyn, after observing him disobey a stop sign in the vicinity of Glenwood Road and East 104<sup>th</sup> Street. PO Smith stated that the decision to pull § 87(2)(b) over was one that both he and PO Mentore made together. The patrol car’s emergency lights and sirens were activated, and § 87(2)(b) pulled his vehicle over accordingly. PO’s Smith and Mentore both exited the patrol car. PO Smith approached the driver side of § 87(2)(b) vehicle, and PO Mentore approached the passenger side of the vehicle and started knocking on the car body in order to distract § 87(2)(b). PO Smith stated that when he and PO Mentore “came up to the car, § 87(2)(b) was fidgeting around and moving.” PO Smith asked § 87(2)(b) to produce his license, registration and insurance. § 87(2)(b) asked the officer why he needed this paperwork and PO Smith told § 87(2)(b) to produce the documents, and then he would let him know why he needed them. § 87(2)(b) leaned over to the glove box in order to retrieve these documents. At this time, PO Smith looked into § 87(2)(b) vehicle and observed a knife handle sticking out of the pocket on the front driver side door (there were papers in this pocket as well; PO Smith stated that the knife handle was visible through these papers). PO Smith stated that he was able to observe the knife from where he was standing without leaning into the vehicle due to its size. PO Smith stated that he asked § 87(2)(b) to step out of the vehicle and then he retrieved the knife (PO Smith stated that no other part of the vehicle was searched at the incident location). § 87(2)(b) was escorted to the rear of his vehicle, where he was handcuffed. PO Smith could not recall who handcuffed § 87(2)(b) although he stated that it is likely that the officer who prepared the summonses for § 87(2)(b) was also the one who handcuffed him. According to the 69<sup>th</sup> Precinct’s records, PO Smith filled out the summonses. PO Smith stated that after § 87(2)(b) was handcuffed, he asked § 87(2)(b) why he had the knife in his car; PO Smith did not recall § 87(2)(b) response. PO Smith also did not recall § 87(2)(b) asking the officers for their names or shield numbers. When asked to describe the knife, PO Smith stated “it was a bread knife.” He then stated that the knife was about “a foot and a half” long from handle to tip and that the blade of the knife was “at least a foot” long. At another point, he referred to the knife as a “sword.”

A sergeant was contacted over police radio and was informed that there was “one under” at the location of incident (PO Smith did not recall who made the call, nor did he recall which sergeant was contacted). The sergeant responded to the location, and § 87(2)(b) was taken to the 69<sup>th</sup> Precinct Stationhouse. § 87(2)(b)’s vehicle was also taken to the stationhouse, where it was searched for contraband (PO Smith stated that he searched the vehicle, but was not sure if other officers aided him in the search); nothing was recovered. PO Smith stated that he was unsure about who drove § 87(2)(b) vehicle

to the stationhouse. PO Smith also stated that he did not recall who drove § 87(2)(b) to the stationhouse. What is more, PO Smith stated that he did not recall any details about the appearance of § 87(2)(b) vehicle.

While at the stationhouse, § 87(2)(b) was issued one summons for § 87(2)(b) and another summons for § 87(2)(b) (PO Smith stated that § 87(2)(b) was not charged with anything else). PO Smith stated that he released § 87(2)(b) from the stationhouse, but that he did not recall how long § 87(2)(b) was detained there.

#### **NYPD Documents**

The undersigned investigator completed checks with MISD and the New York State Police in order to determine when the subject officers ran a check on § 87(2)(b) license plate. This check yielded negative results. In addition, a property/evidence voucher was ordered in order to determine the length of the knife recovered from § 87(2)(b) vehicle. The property/evidence voucher did not indicate the length of said knife.

#### **Complainant CCRB History**

This is § 87(2)(b) first CCRB complaint.

#### **Complainant History of Criminal Convictions**

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **Subject Officers CCRB History**

Neither PO Smith nor PO Mentore have had any substantiated CCRB complaints. PO Smith and PO Mentore have been members of the NYPD for three and two years respectively.

#### **Conclusions and Recommendations**

#### **Undisputed Facts**

It is undisputed that on November 15, 2004, PO Smith and PO Mentore stopped the vehicle that § 87(2)(b) was driving, and § 87(2)(b) was in possession of a knife, the blade of which was longer than four inches. It is also undisputed that, as a result of the incident, § 87(2)(b) was arrested and issued two summonses. What is more, all parties stated that § 87(2)(b) vehicle was searched while he was being held at the 69<sup>th</sup> Precinct Stationhouse.

#### **Credibility Assessment**

§ 87(2)(g)

§ 87(2)(g)

**Recommendations**

**Allegation A: PO Patrick Smith stopped the car in which § 87(2)(b) was an occupant.**

**Allegation B: PO Ron Mentore stopped the car in which § 87(2)(b) was an occupant.**

PO Smith and PO Mentore stated that they observed § 87(2)(b) disobey a stop sign as well as a steady red light in the vicinity of East 102<sup>nd</sup> and East 103<sup>rd</sup> Streets in Brooklyn. Consequently, the officers stopped § 87(2)(b) vehicle. § 87(2)(b) stated that he disobeyed neither the stop sign nor the traffic light and that the stop was unjustified. A subpoena request forwarded to the New York State Police yielded negative results for a check of § 87(2)(b) license plate from a mobile digital terminal. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegations A and B be closed as **Unsubstantiated**.

**Allegation C: PO Patrick Smith searched the car in which § 87(2)(b) was an occupant.**

§ 87(2)(g) PO Smith stated that he observed a knife protruding from the pocket of § 87(2)(b) driver side door as he stood alongside the vehicle awaiting § 87(2)(b) license and registration. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation C be closed as **Unsubstantiated**.

**Allegation D: PO Patrick Smith refused to provide his name and shield number to § 87(2)(b)**

**Allegation E: PO Ron Mentore refused to provide his name and shield number to § 87(2)(b)**

§ 87(2)(b) alleged that he requested the names and shield numbers of both officers at the time of the incident and that the officers refused to provide him with this information. § 87(2)(g)

§ 87(2)(b) PO Mentore stated that he did not recall § 87(2)(b) asking him or PO Smith for their names and/or shield numbers.

§ 87(2)(g) It is therefore recommended that allegations D and E be closed as **Unsubstantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: